

26STCV09697 26STCV09697

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-22

Motion: DEFENDANT CITY OF LOS ANGELES'S DEMURRER TO PLAINTIFF DANIELLE WELLS' COMPLAINT

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Case Number: 26STCV09697 Hearing Date: September 22, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

DANIELLE WELLS, an individual

Plaintiff,

vs.

CITY OF LOS ANGELES, a Public

Entity; AL MENDOZA, an individual; JOHN SHAH, an individual; and DOES 1 100,
inclusive,

Defendants.

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CASE NO: 26STCV09697

[TENTATIVE] ORDER RE: DEFENDANT

CITY OF LOS ANGELES'S DEMURRER TO PLAINTIFF DANIELLE WELLS' COMPLAINT

Dept. 731

September 22, 2026

8:30 A.M.

Matter No. 10

Moving Party: Defendant, City of Los Angeles

Opposing Party: Plaintiff, Danielle Wells

Notice: OK

Background Facts

Now before the Court is Defendant

City of Los Angeles's demurrer to all seven Fair Employment and Housing Act ("FEHA") claims and the whistleblower retaliation Labor Code claim in Plaintiff Danielle Wells' March 25, 2026, Complaint, which arise from allegations of race, gender, age, and disability discrimination, harassment, and retaliation and protected Labor Code retaliation in Plaintiff's employment with the Los Angeles Police Department.

Demurrer

Meet and Confer

The Court determines that while the meet and confer efforts that preceded the City's demurrer were insufficient (Demurrer, Franklin Decl., ¶¶ 2-3, Ex. A [meet and confer limited to physical mail, no in-person, telephonic, or videoconferencing communications]; cf. Code Civ. Proc., § 430.41, subd. (a)), such a finding is not a basis to overrule the demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4) ["A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer"].)

b. Legal
Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see Code Civ. Proc., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly

pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer may only be used to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The face of the complaint includes exhibits attached to the complaint. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.) If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence. (Holland v. Morse Diesel Intern., Inc. (2001) 86 Cal.App.4th 1443, 1447, superseded by statute on other grounds as stated in White v. Cridlebaugh (2009) 178 Cal.App.4th 506, 521.)

Discussion

i. Demurrer,
First and Second Causes of Action, FEHA Discrimination, Race, Gender, and Age, and Disability

The Court **OVERRULES** the City's demurrer as to the first and second causes of action for FEHA Discrimination based on race, gender, and age, and disability respectively.

The demurrer's first argument against these claims is that the only actionable adverse employment action was demotion in October or November 2020 but that Plaintiff filed this action on March 25, 2026, well beyond the three-year limitations period that elapsed in November 2023 as to any Right to Sue Letter. (Demurrer, p. 4.) However, the Court determines that the discovery of the harm here is sufficiently alleged not to have occurred until April 3, 2025, which is when Plaintiff's internal grievance complaint related to her demotion was resolved against her, as detailed in an email from Detective Brian Burdick. (Complaint, ¶¶ 46-50; see Doe v. Roman Catholic Archbishop of Los Angeles (2016) 247 Cal.App.4th 953, 961 [A statute of limitations starts to run once the cause of action “accrues,” and

although a cause of action typically accrues when it is complete with all of its elements, a cause of action will at times be deemed to accrue at a later date, such as when the plaintiff did not discover and had no occasion to discover the cause of action until that later date, when the defendant fraudulently concealed the existence of a possible claim until that later date, or when the defendant committed multiple wrongs that ended on that later date.].)

The City's second argument against the discrimination claims contends that the Complaint insufficiently alleges a nexus between the protected characteristics and the adverse employment conduct, arguing that any such nexus is, at most, conclusorily alleged. (Demurrer, pp. 4-6.) The Court, however, agrees with the opposition that sufficient ultimate facts are alleged in the Complaint to allege a nexus between race, gender, age, and disability and Plaintiff's demotion, where evidentiary facts can be elaborated on in discovery. (See, e.g., Complaint, ¶¶ 65-66, 77-80.)

The City's demurrer thus fails as to the first and second causes of action.

ii. Demurrer,

Third and Fourth Causes of Action, Failure to Provide Reasonable Accommodations or Engage in the Interactive Process

The Court however SUSTAINS the demurrer as to the Complaint's third and fourth causes of action, with leave to amend.

These claims allege a failure to provide accommodations or engage in the interactive process relating to Plaintiff's disabilities. (Complaint, ¶¶ 89, 96-99.)

However, the Complaint provides no temporal period for when these accommodations were not respected. (See, e.g., Complaint, ¶¶ 84-92, 93-103.)

As a result, the Court cannot determine when the limitations period began to run on discrete requests for reasonable accommodations by Plaintiff, as alleged in the Complaint generally, but critically not specifically as to any date. (See Demurrer, pp. 6-7 [making this argument].)

Consequently, the Complaint is
insufficiently alleged as to the third and fourth causes of action.

iii. Demurrer,
Fifth Cause of Action, FEHA Harassment

The Court also SUSTAINS the City's
demurrer to the Complaint's FEHA harassment claim.

Here, the FEHA harassment claim is
based on separate, discrete acts, here specifically harassment by Captains
Mendoza and Shah, in language seeming to plead an Intentional Infliction of
Emotional Distress Claim. (SAC, ¶¶ 106-108.)

However, as with the third and
fourth causes of action, the harassment claim is insufficiently alleged because
it does not sufficiently allege a concrete start for the limitations period,
where the actionable conduct could have occurred between 2019 and the filing of
the Complaint, rendering the Complaint subject to demurrer.

iv. Demurrer,
Sixth and Eighth Causes of Action, FEHA and Labor Code Retaliation

The Court however OVERRULES the
demurrer as to the sixth and eighth causes of action.

The FEHA and Labor Code
respectively make it unlawful to retaliate against an employee for reporting
unlawful violations of the FEHA or violations of the Labor Code or other laws.
(Yanowitz v. L'Oreal USA Inc. (2005) 36 Cal.4th 1028, 1042 [FEHA
retaliation elements]; Lawson v. PPG Architectural Finishes, Inc. (2022)
12 Cal.5th 703, 712 [Labor Code retaliation elements].)

Here, the Court determines that the
sixth and eighth causes of action, at the very least, sufficiently allege
retaliation as of April 29, 2025, based on confirmation of Plaintiff's
demotion, as premised on her prior complaints of FEHA and Labor Code violations
in her employment with the LAPD. (See, e.g., Complaint, ¶¶ 126, 142-143.)

v. Demurrer,

Seventh Cause of Action, FEHA Failure to Prevent Harassment, Discrimination,
and Retaliation

Last, the Court OVERRULES the
demurrer as to the seventh cause of action, as this claim is derivative of
liability vis-à-vis the first, second, and sixth causes of action, which
survived demurrer, as discussed above.

d. Conclusion

Defendant City of Los Angeles's
demurrer is SUSTAINED, in part, and OVERRULED, in part, as follows:

(1) OVERRULED as to causes of
action one, two, six, seven, and eight; and

(2) SUSTAINED, with leave to amend,
as to causes of action three, four, and five.

Plaintiff may file an amended
pleading responding to this Order within 15 days of the date of this Order.

Defendant City of Los Angeles is
ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 22, 2026 _____

MARK C. KIM

Judge of the
Superior Court